

the Petition. Proof of service of a notice of hearing or order to show cause on the father has not been submitted, nor has proof of publication. Unless proof of timely service on the father, as well as proof of publication, is submitted at hearing, the Court intends to the Petition and close the file.

MALINOVSKY VS. CROSBY, ET AL.

CASE NUMBER: 26CV-0211172

Tentative Ruling on Demurrer: Defendants Shasta Union High School District, Owen Crosby, Jason Rubin, and Heath Bunton demur to each cause of action alleged in the First Amended Complaint (FAC) filed by Plaintiff Joseph L. Malinovsky on July 10, 2026. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ross Nott provides evidence of sufficient efforts to meet and confer.

Request for Judicial Notice. Defendant request the Court take judicial notice of the Government Tort Claim filed by Plaintiff on or about December 16, 2025 pursuant to Evid. Code §§ 451, 452, and 453. The request is granted.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The FAC alleges three causes of action – Intentional Infliction of Emotional Distress (IIED), Negligent Infliction of Emotional Distress (NIED), and Violation of a Mandatory Duty. Defendants demur to each under several theories.

Duty. Defendants allege that Plaintiff lacks the special relationship to give rise to duty, which is required for a negligence claim.

There is no independent tort of negligent infliction of emotional distress; rather, “[t]he tort is negligence, a cause of action in which a duty to the plaintiff is an essential element.” (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) “That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.”

Ragland vs. U.S. Bank National Assn. (2012) 209 Cal. App. 4th 182, 205.

Plaintiff alleged that being allowed on campus in order to provide services to a different student gave rise to a duty, however, this argument was abandoned in the Reply. The other theory of duty raised is based on Plaintiff’s minor child being a student of SUHSD. While school districts have a duty to students who are supervised by district staff and required to be on campus, that duty does not generally extend to parents. *Steven F. v. Anaheim Union High School District* (2003) 112 Cal 4th 904. Because there is no duty owed to Plaintiff himself, as opposed to his minor child who was a student at the school, claims sounding in negligence cannot stand and the Demurrer on this ground as to the Second Cause of Action is **SUSTAINED**. Plaintiff has not shown that any fact could correct the defect, therefore, leave to amend will not be granted.

Official Proceedings Privilege. A privileged publication or broadcast is one made in the proper discharge of an official duty. Civ. Code § 47(a). The privilege also applies in “any (1) legislative proceeding, (2) judicial

proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...” Civ. Code § 47(b).

Each of the three cases cited by Defendants involved whether the privilege applies to the statements made by the individuals making the complaint, not the response from the agency being complained to. As far as the privilege under § 47(a) is concerned, Defendants have failed to establish which statements are being considered a broadcast or publication.

Civil Code section 47, subdivision (b) provides that any publication made in any “judicial proceeding” or “in any other official proceeding authorized by law” is privileged. The privilege is designed to provide the utmost freedom of communication between citizens and public authorities whose responsibility is to investigate wrongdoing. (*Brody v. Montalbano* (1978) 87 Cal. App. 3d 725, 733 [151 Cal. Rptr. 206].) Accordingly, communications to an official agency intended to induce the agency to initiate action are part of an “official proceeding.” (*Id.* at p. 732.) Thus it is well settled that complaints to school authorities about a teacher or principal in the performance of his or her official duties are privileged. (*Id.* at pp. 731–735; *Martin v. Kearney* (1975) 51 Cal. App. 3d 309 [124 Cal. Rptr. 281].)

Lee v. Fick (2005) 135 Cal. App. 4th 89, 96.

Accordingly, investigations about a teacher or principal are official proceedings within the meaning of Civ. Code § 47(b). Defendants argue that the statements made by Defendant Bunton during the meeting in which the complaint was made, as well as statements made by any defendant in the investigation and eventual determination are all part of the official proceeding. Based on the allegations in the FAC, this appears to be the case. Each of the three causes of action alleged are premised on statements made during an official proceeding that are subject to privilege. Therefore, the Demurrer to the entirety of the FAC is **SUSTAINED** on that ground.

Discretionary Immunity. “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” Gov. Code § 820.2.

“The immunity for discretionary acts under section 820.2 ‘confers immunity only with respect to those “basic policy decisions” which have been committed to coordinate branches of government, and does not immunize government entities from liability for subsequent ministerial actions taken in the implementation of those basic policy decisions [citation]. This distinction is sometimes characterized as that between the “planning” and the “operational” levels of decision-making [citation].’ [Citation.]

San Mateo Union High School Dist. v. County of San Mateo (2013) 213 Cal. App. 4th 418, 433-434.

Neither party provided a copy of District Policy 1312.1, which the Court could have taken judicial notice of. Therefore, the Court is unable to determine if the acts taken in receiving, investigating, and making a determination on the Complaint were discretionary in nature, or merely ministerial acts in following District Policy 1312.1. Because Defendants are the party claiming immunity, it is Defendants’ burden to show that discretionary immunity applies to each of the acts alleged against the individual Defendants, which Defendants did not do. The Demurrer on the basis of discretionary immunity is **OVERRULED**.

Lack of Severe/Outrageous Conduct or Serious Emotional Distress. Both IIED and NIED contain an element that the defendant’s conduct was outrageous. The Demurrer to the NIED claim has already been sustained without leave to amend.

The elements of the tort of intentional infliction of emotional distress are: “(1) extreme and

outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . .' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209 [185 Cal.Rptr. 252, 649 P.2d 894].) The defendant must have engaged in "conduct intended to inflict injury or engaged in with the realization that injury will result." (*Id.* at p. 210.)

It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.

Christensen v. Superior Court (1991) 54 Cal. 3d, 868, 903.

A defendant's conduct is "outrageous" when it is so "“extreme as to exceed all bounds of that usually tolerated in a civilized community.”" (*Potter*, at p. 1001.) And the defendant's conduct must be "“intended to inflict injury or engaged in with the realization that injury will result.”"

Hughes v. Pair (2009) 46 Cal. 4th 1035, 1051.

The alleged conduct, as directed at Plaintiff himself as opposed to his minor child, does not exceed all bounds of that usually tolerated in a civilized community. The elements of an IIED claim are not properly alleged. The Demurrer to the First Amended Complaint is **SUSTAINED** on the ground of missing elements. Plaintiff has failed to allege any facts that would change the outcome of the Demurrer on this ground. Absent additional facts being provided at the time of hearing, leave to amend will not be granted.

Failure to Identify Enactment. The Third Cause of Action is against Defendant SUHSD only. Plaintiff alleges that District Policy 1312.1 is a formally adopted regulation qualifying as a mandatory enactment under Gov. Code § 815.6. "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." Gov. Code § 815.6. "Enactment' means a constitutional provision, statute, charter provision, ordinance or regulation." Gov. Code § 810.6.

The term 'enactment' as used in Government Code section 815.6 means 'a constitutional provision, statute, charter provision, ordinance or regulation.' (Gov. Code, § 810.6.) 'This definition is intended to refer to all measures of a formal legislative or quasi-legislative nature.' [Citation.] The term 'regulation,' as used in Government Code section 810.6 means 'a rule, regulation, order or standard, having the force of law, adopted . . . as a regulation by an agency of the state pursuant to the Administrative Procedure Act [Act].' [Citation.] [P] 'The . . . Act rulemaking provisions apply to *most state agencies* and their regulations. [Citations.] There are significant exceptions, however, both as to the agencies and types of regulations covered. [Citation.]" [Citations.] For instance, the Act does not apply to '[a] regulation that relates only to the internal management of the state agency' or '[a] regulation that is directed to a specifically named person or to a group of persons and does not apply generally throughout the state.'"

County of Los Angeles v. Superior Court (2002) 102 Cal. App. 4th 627, 638.

Section 815.6 has three discrete requirements which "must be met before governmental entity liability may be imposed under Government Code section 815.6: (1) an enactment must impose a mandatory duty; (2) the enactment must be meant to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered." (*Ellerbee v. County of Los Angeles*, *supra*, 187 Cal.App.4th 1206, 1215.

Again, neither party provided a copy of District Policy 1312.1. Plaintiff alleges that the policy imposed a mandatory duty in without specifically naming the mandatory duty. Element two is not alleged in the FAC and element three is not alleged as to Plaintiff himself. Therefore, Plaintiff has failed to provide sufficient facts showing that District Policy 1312.1 created an enactment within the meaning of Gov. Code § 810.6. Without an enactment, the violation of Gov. Code § 815.6 does not survive demurrer. The Demurrer to the Third Cause of Action is **SUSTAINED** on that ground.

The Demurrer is **SUSTAINED** and **OVERRULED** as noted above. While it appears that the Third Cause of Action could potentially be cured by amendment including District Policy 1312.1, that would not sure the issue of the official proceedings privilege. Absent specific facts provided by Plaintiff at the time of the hearing that could cure the defects, the Court does not intend to grant leave to amend. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.

WAGNER VS. LLOYD

CASE NUMBER: CVCV21-0198602

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to show Cause Re: Sanctions issued on July 30, 2026 to Defendant Jeff Lloyd, in pro per, for failure to appear on July 20, 2026 and June 1, 2026 as previously ordered by the Court. The June 1, 2026 hearing date was set in the Statement of Decision which was mailed to both parties on April 8, 2026. The July 20, 2026 hearing date was set on June 1, 2026, however, Defendant was not present and there is no evidence before the Court that notice of the July 20, 2026 hearing date was given to Defendant. The Court notes that the Order to Show Cause mailed to Defendant was returned as undeliverable. The Court further notes that while Defendant has not changed his address of record from the address used to mail the Order to Show Cause, Defendant attempted to file documents containing a different address on March 20, 2026. That address is 12280 Skyline View Lane, Brighton UT 84121. Absent an appearance by Defendant today, hearing on the Order to Show Cause will be continued to **Monday, November 9, 2026 at 8:30 a.m. in Department 63.** The clerk is directed mail a copy of today's minutes as well as the Order to Show Cause to Defendant at the address listed in this tentative ruling. Defendant is reminded of the importance of keeping the Court apprised of a valid mailing address by filing and serving a Notice of Change of Address (Judicial Council Form MC-040) any time there is a change of address.

9:00 a.m. – Review Hearings

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for confirmation of transfer or uncashed checks to the State Controller's Unclaimed Property Fund. A declaration was filed providing confirmation that the funds were transferred on August 7, 2026. The Court considers the settlement to be complete. The clerk is directed to close the file and vacate any future dates.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.

CASE NUMBER: 26CV-0209907

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this as a Plan III matter and notes that the parties have discussed trial dates in August or September 2027. All parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing to determine if the parties can all agree on a trial date. **An appearance is necessary on today's calendar.**